

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 11
Honorable Mark D. Flanagan
Lisbeth Martinez, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2228

DATE: August 14, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all parties before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

IN-PERSON APPEARANCES: Department 11 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 11 uses UDC as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 11:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process can be found here:

https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
		9:00 CALENDAR	
LINE 1	24CV454922	Nee Lau et al. v. Mingjie Jiang	See Line 1 below for tentative ruling.
LINE 2	25CV473159	Shabana Pirani v. Petrinovich Pugh & Co et al.	See Line 2 below for tentative ruling.
LINE 3	24CV452088	Oifun Tse v. BMW of North America, LLC, a Delaware Limited Liability Company	Parties to Appear
LINE 4	22CV407147	Palo Alto Family, L.P. v. Segue Construction, Inc., et al.	Parties to Appear
		9:01 CALENDAR	
LINE 1	26CV490422	Awko Doe 152 v. San Jose Unified School District et al.	The motion for admission Pro Hac Vice is granted. The Court will sign the order.
LINE 2	26CV492584	MCT Group v. Luis Hernandez	Off calendar.
LINE 3	26CV497694	City of San Jose v. San Jose Police Officers' Association, et al.	Parties to Appear.

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Calendar Line 1

Case Name: *Nee Nga Lau, et al. v. Mingjie Jiang, et al.*

Case No.: 24CV454922

In this case, Plaintiffs assert six causes of action: (1) doxing, Civil Code § 1708.89, (2) defamation; (3) intentional interference with prospective economic advantage; (4) negligent interference with prospective economic advantage; (5) intentional infliction of emotional distress; and (6) invasion of privacy. Defendant and Cross-Complainant answered the complaint and asserted two causes of action via cross-complaint: (a) breach of contract; and (b) fraudulent inducement to enter into contract.

Plaintiffs filed a motion to bifurcate for trial the claims in the complaint and the claims in the cross-complaint, arguing that a combined trial would create a substantial risk of jury confusion, pointing to the distinct legal standards for the different claims and the distinct damages frameworks, and that Defendant-Cross-Complainant's contract and fraud claims could undermine Plaintiffs' tort claims.

Plaintiff did not file an opposition to the motion, which the Court can treat as a concession. However, the Court has an independent interest in preserving judicial economy in resolving the disputes before it. Here, Plaintiffs' motion to bifurcate and have potentially two trials, may result in more, not less, use of judicial resources, including jury time. The Court is aware based on previous motions filed in this case that there likely is a substantial overlap in evidence between Plaintiffs' claims and Defendant-Cross-Complainant's claims, as both sets of claims ultimately arise out of the apparent agreement between Plaintiff Lau and Defendant-Cross-Complainant for the transfer of currency from China to the U.S. The fact that different claims have different burdens of proof and different damages frameworks is not, standing alone in this case, a reason to order a bifurcated trial at this point.

It may well be that, when the case is ready for trial, the trial judge will decide that the case can be more efficiently and fairly tried in a bifurcated manner. But this Court will not tie the hands of the trial judge in deciding how best to try the case.

Accordingly, the motion to bifurcate is DENIED WITHOUT PREJUDICE.

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Calendar Line 2

Case Name: *Shabana Pirani v. Petrinovich Pugh & Co.*

Case No.: 25CV473159

Plaintiff Shabana Pirani alleges in this case that her employment was wrongfully terminated by Defendant Petrinovich Pugh & Co. She claims damages of over \$24,000,000. On or about December 31, 2025, Defendant served several sets of discovery requests on Plaintiff via electronic mail: (1) Special Interrogatories, Set One; (2) Form Interrogatories – General, Set One, (3) Form Interrogatories – Employment, Set One, (4) Requests for Admissions (“RFAs”), Set One, and (5) Requests for Production of Documents (“RFPs”), Set One (collectively, the “Discovery Requests”). *See* Declaration of Gianna Taormina ISO Motion to Compel Responses to Plaintiff’s Interrogatories (“Taormino Decl. re Interrogatories”), ¶ 4.

At the case management conference on January 15, 2026, Plaintiff stated that she did not consent to electronic service. Consequently, on February 12, 2026, Defendant re-served Plaintiff with the Discovery Requests, this time by U.S. Mail. *Id.*, ¶ 6 & Ex. D; Declaration of Gianna Taormina ISO Motion to Compel Further Responses to Defendant’s Requests for Admissions (“Taormino Decl. re RFAs”), ¶ 6 & Ex. D; Declaration of Gianna Taormina ISO Motion to Compel Responses to Defendant’s Requests for Production of Documents (“Taormino Decl. re RFPs”), ¶ 6 & Ex. D. Proofs of service attached to each of the Discovery Requests evidence that Plaintiff was served with each of the requests by U.S. Mail.

Responses to the Discovery Requests were due by March 19, 2026. Defendant did not receive any responses. On March 24, 2026, Defendant sent a letter via certified mail to Plaintiff in an attempt to meet and confer. Defendant received no response and on May 5, 2026, the letter was returned to defense counsel because the post office was unable to successfully deliver the letter apparently because Plaintiff did not sign for its receipt.¹ *E.g.*, Taormino Decl. re RFAs ¶¶ 7, 8, 10 & Exs. E & F. This motion followed, seeking to compel responses and in the case of the requests for admissions, to have them deemed admitted. Defendant also seeks monetary sanctions of \$2,960 for the cost of bringing and briefing this motion.

Plaintiff filed an opposition to the motion to compel interrogatories. She raises several arguments, none of which have any merit. First, she claims that Defendant is in default and therefore not authorized to serve discovery. Not so. The records show that Plaintiff did request entry of default and default judgment on October 14, 2025. But on October 15, 2025, the clerk’s office actually *rejected* the request for entry of default due to missing information.²

¹ According to Defendant, Plaintiff refuses to speak with defense counsel because she does not believe that they were ever validly appointed. It is not clear what Plaintiff means by this, but in fact, defense counsel *does* represent Defendant in this case. In order for Plaintiff to discharge her duties as a self-represented litigant, it is essential that she communicate with defense counsel and that she accept delivery of mail sent to her by defense counsel.

² It is true that on the form, a clerk erroneously checked the box for “default entered as requested,” but at the same time indicated that there were defects in the request, which the clerk prominently highlighted. The docket for that entry states: “Default Not Entered.”

Plaintiff continued to seek entry of default through November, to no avail. Meanwhile, Defendant had filed its Answer on October 9, 2025, so there was no reason for a default to be entered.

Second, Plaintiff claims that the motion is procedurally defective and ambiguous, pointing to the fact that Defendant filed separate supporting papers for each of the discovery requests. Plaintiff claims that this caused her confusion. But Plaintiff evidently understood the motions well enough to submit an opposition. This argument also lacks merit.

Third, Plaintiff claims defective service of the interrogatories³ and absence of valid proof of service. This argument has several sub-parts, none of which have any merit:

- Plaintiff objects that the form interrogatories do not use the Judicial Council forms. But they clearly do.
- Plaintiff claims that she was “never personally served, nor served by any legally recognized method.” But the proofs of service, combined with the declarations of counsel, show that the Discovery Requests were served by U.S. Mail.
- Plaintiff claims an absence of a valid proof of service of the requests. As noted, proofs of service were submitted to the Court, attached to each of the Discovery Requests.
- Plaintiff claims that “Defendant’s assertions rely on discovery obligations that would require subpoena compliance under CCP § 1985 et seq., yet no subpoena was ever personally served.” It is not at all clear what Plaintiff is referring to. Subpoenas are available as a discovery tool for securing third party discovery. The Discovery Requests are not third party discovery, so no subpoena was required.

Fourth, Plaintiff claims that “Defendant’s conduct constitutes misuse of discovery under CCP § 2023.010.” While she lists several categories of discovery misconduct from the statute, she does not provide any facts to support the allegations. The objections therefore fail.

Fifth, Plaintiff asks that the request for sanctions be denied, based on her service and default arguments, and that the motion is not substantially justified. The Court has already rejected her service and default arguments. The Court finds that Defendant’s motion *was* substantially justified, given Plaintiff’s failure to respond to any of the Discovery Requests and refusal to meet and confer with defense counsel. Defendant seeks monetary sanctions in the amount of \$3,690, based on a billing rate of \$330 per hour and the filing fee of \$60, which the Court finds to be justified.

Plaintiff evidently understood that the default had not been entered as she continued her efforts to do so into the following month.

³ Although Plaintiff only references the interrogatories in her response, the Court will assume that Plaintiff makes the same arguments vis-à-vis the RFAs and RFPs.

Sixth, and based on her arguments opposing the motion, Plaintiff seeks sanctions against Defendant. For the reasons stated above, the Court denies that request.

In short, Defendant has demonstrated that it validly served the Discovery Requests, that Plaintiff never responded and that attempts to meet and confer were unsuccessful. None of Plaintiff's arguments excuse her failure to respond to the Discovery Requests. The Court also finds that the expenses incurred by Defendant in filing this motion are reasonable and that the award of sanctions is justified.

Accordingly, IT IS ORDERED that the requests for admission set forth in Defendant's Requests for Admissions, Set One, are deemed admitted.

IT IS FURTHER ORDERED that, **within 30 days of this Order**, Plaintiff shall:

1. Provide Code-compliant responses to Defendant's Special Interrogatories, Set One.
2. Provide Code-compliant responses to Defendant's Form Interrogatories – General, Set One.
3. Provide Code-compliant responses to Defendant's Form Interrogatories – Employment, Set One.
4. Provide Code-compliant responses to Defendant's Requests for Production of Documents, Set One.
5. Pay monetary sanctions in the amount of \$3,690.

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